2006 DESIGN BUILD STANDARD SPECIFICATIONS FOR HIGHWAY CONSTRUCTION

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INTERPRETATION
DESIGN BUILD STANDARD SPECIFICATIONS

Any reference to the "Design Build Minor Specifications", "Standard Design/Construct Specifications", "Design/Construct Specifications", "D/C Specifications" and similar terms will be a reference to these specifications.

Generally, standard drawings of the "SP" series (such as SP635-2.3.6) are not included within this document. Unless otherwise stated in the Request for Proposals/Tender Document Package, any reference to an "SP" drawing which is not present herein (or otherwise included with the Request for Proposals/Tender Document Package) will be a reference to the like-numbered drawing in the edition of the Ministry's ***Standard Specifications for Highway Construction*** in effect at the time of issuance of the Request for Proposals or the Tender, as the case may be.

Notwithstanding any provision of these specifications, the Contractor will supply all materials necessary for the completion of the Work (unless supply of those materials is explicitly specified in the "Ministry Supplied Materials and Services" schedule to the Request for Proposals or the "Ministry Supplied Materials" Special Provisions clause in the Tender Document Package) and will be responsible for all quality control and quality assurance testing of the materials.

Any reference to "as shown by the Design", "in the opinion of the Designer", "as approved by the Engineer", or similar language will mean as shown by the Design or as field adjusted to the suit the conditions at the Site and to achieve the intent of the Project. Any field or designer decisions will be made by a professional engineer or other such professional, as appropriate to the nature of the Work, registered to practice in the Province of British Columbia, in a manner to ensure the safety of, and minimize the impact upon, the public and to minimize the lifecycle cost co the Province, including construction, maintenance, and rehabilitation over the life of the Work.

SECTION 101

QUALITY MANAGEMENT

101.01 General All work on Ministry projects shall be undertaken through a total quality management process, utilizing Ministry, Contractor and third-party resources, as necessary.

The Ministry accepts the following definitions associated with Quality Management:

- Quality Control (QC): The process of checking specific product or service results to determine if they comply with relevant quality standards and identifying ways to eliminate causes of unsatisfactory product or service performance.

- Quality Assurance (QA): The process of evaluating overall product or service, by persons or companies independent of those doing the Work, on a regular basis to provide confidence that the product or service satisfies the relevant quality standards.

- Quality Audit (QAudit): Review by a party independent of QC and QA, to provide confidence that QC and QA processes and resulting products satisfy the contractual requirements.

- Quality Management (QM): The compendium of quality control, assurance and audit provided by a party.

The quality management program on a Design Build project has three key components as follows:

- Quality Control – the Contractor's responsibility

- Quality Assurance – the Contractor's responsibility

- Quality Audit – the Ministry's responsibility

Each component of the program must address design, materials, processes, products, and documentation.

The Contractor shall provide unrestricted access to all its Quality Management operations and documentation produced by or on behalf of the Contractor and shall allow the Ministry full access at any time during working hours.

The Ministry Representative will review the Contractor's performance of the Work and determine the acceptability of the Work based on the Ministry's Quality Audit results and, where deemed appropriate by the Ministry Representative, supplemented by the Contractor's Quality Management results.

Work failing to meet the conditions of the Contract shall be considered Unacceptable Work.

The Ministry Representative may consider all Work from the last acceptable Quality Audit testing as Unacceptable Work. The Contractor shall not be entitled to payment for Work that lacks the appropriate Quality Management documentation, verified by the Quality Manager, as required by the Contract.

The Contractor shall implement a well-coordinated approach to all operations related to the Work and will organize its team and operations in keeping with the goal of doing things right the first time.

101.02 Quality Control Plan (QC Plan)

101.02.01 QC Plan General Requirements The Contractor shall be responsible for all Quality Control during the performance of the Work. QC work includes monitoring, inspecting and testing the means, methods, materials, workmanship, processes and products of all aspects of the Work, including design, construction and management, as necessary to ensure conformance with the Contract.

The Contractor shall prepare a Quality Control Plan (QC Plan) in accordance with the Contract provisions and shall submit the complete QC Plan to the Ministry Representative a minimum of two weeks in advance of commencement of any element of Work covered by the plan.

The QC Plan shall be structured around the ISO 9001:2000 program (although ISO registration is not required), and clearly demonstrate the Contractor's understanding and commitment to ISO's eight principles of quality management:

- Customer focused organization

- Leadership

- Involvement of people

- Process approach

- System approach to management

- Continual improvement

- Factual approach to decision-making
- Mutually beneficial supplier relationships.

The QC Plan must also include sections detailing the Contractor's methodology associated with each of the relevant sections of ISO 9001:2000 as listed in Table 101-A.

No work shall be undertaken on any element of Work (including payment Items and incidental Work, or submittals for review) for which there are QC Plan submission requirements until the Quality Manager and the Ministry have accepted the base portion of the QC Plan and the specific details for that element of Work.

Subject to the submission requirements outlined in DBSS 101.02.03, the QC Plan is required to cover the Work in its entirety, including without limitation all materials the Contractor and Subcontractors are supplying, and all items and phases of the design and construction on the Project.

The plan may be operated wholly or in part by a qualified Subcontractor or an independent agency/organization. However, the plan's administration (including conformance with the plan and its modifications) and the quality of the Work remain the responsibility of the Contractor.

Table 101-A: ISO Section Headings

§	ISO 9001:2000 Section Heading
4	**Quality Management System**
4.1	General Requirements
4.2	Documentation Requirements
5	**Management Responsibility**
5.1	Management commitment
5.2	Customer focus
5.3	Quality policy
5.4	Planning
5.5	Administration:
5.6	Management review:
6	**Resource Management**
6.1	Provision of resources
6.2	Human resources
6.3	Facilities
6.4	Work environment
7	**Product Realization**
7.1	Planning of realization processes
7.2	Customer-related processes
7.3	Design and/or development:
7.4	Purchasing
7.5	Production and service operations
7.6	Control of measuring and monitoring devices
8	**Measurement, Analysis and Improvement**
8.1	Planning
8.2	Measurement and monitoring
8.3	Control of nonconformity
8.4	Analysis of data
8.5	Improvement

The Contractor's QC program and the Work shall be undertaken in accordance with the QC Plan. Testing results must represent actual operations. Results will be reported accurately and in a timely manner.

The Contractor shall also ensure that all workers are familiar with the Quality Management Plans, its goals, and their role under it, as well as with the Contract specifications associated with the Work they are to undertake.

101.02.02 QC Plan Quality Control Staff and Equipment Submission Requirements The

Contractor shall provide all resources and take all actions necessary to ensure:

- Provision of sufficient review, inspection and testing staff, with adequate equipment and technical support to perform all Quality Control functions in an accurate and timely manner.
- That QC staff perform only reviews, inspections and tests for which they are qualified.
- All testing equipment is calibrated, properly maintained, and in good operating condition.
- All testing and inspection is performed in accordance with applicable industry standards and the appropriate standards of the Contract.
- Submission to the Ministry Representative, within twenty-four (24) hours, of daily reports for all tests and inspections that indicate non-conformance of the material being tested.
- Production, within forty-eight (48) hours, of daily reports for all tests and inspections that indicate conformance of the material being tested and the availability of back-up documentation to substantiate test results when required.
- Organization, compilation and submission of all project QC documentation within 14 days of issuance of the Completion Certificate.

The Contractor shall designate one person as the Quality Manager (Quality Manager) who shall be responsible for the implementation of the QC Plan. The Quality Manager shall be a qualified Professional Engineer, Certified Engineering Technician, or Applied Science Technologist, or other person subject to professional liability for their certifications and with knowledge, skills and abilities acceptable to the Ministry Representative. The Quality Manager shall be at arms length from the productivity part of the Contractor's organization and specifically shall not be the Project Manager or the Project Superintendent. On Minor Works contracts, this requirement will, upon request by the Contractor and where the candidate is deemed acceptable under the foregoing paragraph, generally be waived by the Ministry Representative.

The Ministry recognizes the Contractor's Project Manager, Superintendent and Designer as the personnel responsible for making the product meet the contractual requirements, but the Quality Manager's duties include being responsible to measure conformance and to ensure that quality is not compromised by production pressures.

The Quality Manager, or a designated replacement acceptable to the Ministry Representative empowered and able to perform all of the Quality Manager's relevant duties, shall remain on Site at all times the Contractor is performing Work which must be tested or inspected in-process, and must be readily accessible and able to return when off-Site.

The QC Plan will include the following information:

- the name of the Quality Manager and qualifications establishing a proven capability to provide the specific services required for the Project;
- the name of QC testing agencies and their proven capability to provide the specific services required for the Project;
- a listing of QC staff (including names, qualifications and relevant experience) and their assigned roles and work scheduling in performing QC duties;
- a list of testing equipment to be used for the Work.

The QC Plan must include an organizational chart showing details of the flow of information, "hold" points, rectification of deficiencies and other relationships and responsibilities necessary to assure Project quality requirements are met.

The QC Plan should describe how the QC staff are allocated to Project requirements, the tasks assigned to each, and how their work will be coordinated.

Without limitation, the Contractor's Quality Manager shall:

- implement the Contractor's QC Plan;
- be responsible for measuring conformance with all aspects of the contract quality;
- stop work when materials, product, processes or submittals are deficient;
- develop inspection and testing plans for each element of Work;
- develop acceptance/non-acceptance reports and quality control checklists for each element of Work

in sufficient detail to gauge conformance with all contractual requirements;

- ensure the requirements for quality management (including an overview of how the QC Plan operates, the worker's role in it, contractual specifications for the Work, and work procedures) are known to, understood by, and adhered to by all workers on the Site;
- ensure that all QC checklists are signed-off by competent and responsible parties as close to the actual work as appropriate to the nature of the Work (e.g. by the Designer for engineering drawings; by the actual worker or a foreman for most work; by a Professional Engineer for falsework erection; etc.)
- review, sign, and be responsible for all reports (materials and testing results);
- consult with field inspectors regarding materials and testing issues;
- receive notification by inspectors re deficiencies and ensure re-testing or rejection;
- provide weekly and monthly summary reports on testing and inspection results;
- initiate the non-conformance process when materials or product do not meet the required specifications and, inform the Ministry Representative of such non-conformance;
- consult with the Contractor Representative and initiate corrective action on non-conformance;
- respond to each Non-Conformance Report (NCR) issued by the Contractor or the Ministry Representative, within the time specified in the NCR;
- schedule testing and inspection services in coordination with the Contractor's superintendent and foremen;
- include and monitor QC testing and inspection procedures including those of the Subcontractors;
- work directly with the Ministry Representative on matters related to QC;
- ensure required approvals and permits from the Ministry Representative and others are obtained as and when required;
- verify that all testing equipment is properly maintained and kept in good working order;
- keep an organized filing system to ensure that quality records are easily accessible so that auditors can obtain necessary information;
- review issued for construction drawings, calculations, and shop drawings and ensure that all concerned Contractor staff have current versions of documents applicable to their part of the Work;
- notify the Ministry Representative of any changes in survey layout, location, line, grade, etc., for approval; notify the company principles of any issues that compromise the integrity or function of the Quality Management System, and
- provide an auditable trail for survey computations to the Ministry Representative.

101.02.03 QC Plan Submission Requirements (Contract–Specific)

(i) Full Submission

Unless otherwise specified in the Contract, the Contractor's QC plan shall provide details of the means, methods, and frequencies of Quality Control measures for all elements of Work (whether payment Items or incidental or being performed by Subcontractors or Suppliers, including design, construction and management) in the Contract.

(ii) Partial Submission

On projects considered by the Ministry to be of low complexity and/or risk, and only where explicitly invoked by the Contract, the Ministry will accept a partial QC Plan submission.

Notwithstanding any such reduced submission requirements, the Contractor remains responsible for QC for all aspects of the Work.

The Contractor's partial QC Plan submission to the Ministry Representative is only required to address the details of the following types of Work:

- Traffic Control

- Survey/layout
- Design
- Materials incorporated into the Work (concrete barrier, culverts, filter cloth, lock-blocks, etc.)
- Compaction (subgrade, embankments, granular aggregates, culvert backfill, etc.)
- Aggregate gradation
- Plus any other elements identified in the Contract as a submission requirement.

The Contractor shall initiate such other Quality Control procedures as are necessary for ensuring the production of a quality product and may include them in the Quality Control Plan submission.

(iii) For Both Full and Partial Submissions

The initial QC Plan shall be submitted to the Ministry Representative a minimum of seven (7) days in advance of the Project pre-construction meeting and must provide details of all elements of Work anticipated to be undertaken within the Contractor's first thirty (30) days on Site.

The portion of the QC Plan dealing with the design shall be submitted to the Ministry Representative on the earlier of:

- thirty (30) days after Award; and
- a minimum of seven (7) days in advance of the first design submission.

Detailed submissions for the balance of the Work must be received a minimum of seven (7) days prior to the anticipated first day of Work on each element covered by the submission.

The initial submission, as well as any subsequent submission or revision, must be accompanied by the Contractor's QC checklist for Quality Management, verifying that the submission meets all relevant contractual requirements.

Improved procedures may be introduced after the start of work as necessary as amendments to the Quality Control Plan. All amendments require the written acceptance of the Ministry Representative.

The type and frequency of QC tests shall be established by the Contractor and shall be in conformance with the requirements of the Contract, including the minimum frequencies specified in the Contract and/or DB Standard Specifications (for those listed items applicable to the Work), and the current acceptable practice of the industry.

When materials or equipment are specified by standard or performance specifications, the Contractor shall obtain from suppliers or manufacturers independent test reports, or test certificates stating that the materials or equipment meet or exceed specified requirements. The Contractor shall provide documentation of actual testing results upon request by the Ministry Representative.

101.03 Quality Assurance Plan (QA Plan) The Contractor will prepare and the Quality Manager shall implement a Quality Assurance Plan, based in part on the effectiveness and reliability of the Contractor's Quality Control Plan, to assess the effectiveness of that QC Plan. The Contractor shall also undertake random and systematic inspections of the Work and Contractor's QC documentation.

The purpose of the QA Plan and inspectional activities is to ensure that QC procedures are available, are being followed, and that the Contractor will have confidence that the resulting products (transitory or permanent) conform to Contract requirements.

The operation of the QA Plan shall be fully independent of those performing the QC tasks, except for the Quality Manager.

Any instances of Unacceptable Work discovered will result in a Non-Conformance Report being issued by the Contractor to the Contractor.

The QA program activities will not relieve the Contractor of Quality Control responsibilities under the terms of the Contract.

The frequency of QA inspection and testing will generally be approximately five to ten percent (5 – 10%) of the frequencies undertaken by the Contractor in its QC Plan and will initially be set at a level commensurate with the risk that an element will have on final product quality. . Elements that have higher risks shall be checked at higher frequencies; lower risk elements may be checked at lower frequencies.

The Contractor may, with the prior approval of the Ministry Representative, decrease the frequency of QA

inspection and testing during the course of the Work, based upon the proven effectiveness of the Contractor's QC Plan.

101.04 Quality Audit The Ministry will have one or more auditors on the Project. The Ministry Audit will provide a systematic and independent assessment of whether or not the design, construction and management comply with the Contract and the Contractor's QC and QA Plans. . The auditors may or may not be Ministry employees but will be from resources which have not otherwise been involved with the Work.

The objective of Quality Auditing is to have an independent opinion on both QC and QA activities and be proactive in avoiding or reducing quality related issues by requiring the process of conformance verification to be systematic.

The auditor(s) will be allowed unrestricted access to the Site and all activities therein, to all testing and documentation of the work done by the Ministry, Contractor and their agents and suppliers.

The Ministry Representative will monitor the Contractor's operations and the Quality Control program to assure that standards and the terms of the contract regarding quality of materials and processes are being met, and to assess what payments have been earned under the terms of the Contract.

101.05 Non-Conformance Reports (NCRs) The Contractor shall and the Ministry may review the Work to determine conformance with the contractual requirements.

Non-conformances found shall be dealt with as follows.

101.05.01 Contractor's Internal NCR Should the Contractor's QC or QA reporting indicate that the Work is not in conformance, the Quality Manager shall issue an internal Non-Conformance Report (NCR) to the Contractor, with a copy to the Ministry, including a response time.

The Contractor shall then respond to the Quality Manager, with a copy to the Ministry Representative, with respect to the NCR, within the specified time, with proposed resolutions and corrective actions. The Contractor and/or the Quality Manager may consult with the Ministry Representative on the proposed resolutions.

Payment for Quality Management (where specified in the Contract) will not be affected by internal NCRs, as long as the issue is diligently pursued and resolved.

Payment for the Work itself may be withheld until the NCR issue is resolved.

101.05.02 Ministry-Issued NCR Should the Ministry's QAudit reporting indicate that the Work is not in conformance, the Ministry Representative will issue to the Contractor a NCR, including a response time.

The Contractor shall then respond to that NCR, within the specified time, with proposed resolutions and corrective actions.

The Ministry Representative will accept or reject the proposed resolution and corrective action proposal.

Assurance testing and inspection will be performed to determine if the corrective action has provided an acceptable product. Acceptance and rejection will continue until the Ministry Representative determines that a quality product has been achieved.

A portion of the payment for Quality Management (where specified in the Contract) may be withheld until the NCR issue is resolved or, in accordance with DBSS 101.07, may be withheld permanently.

Payment for the Work itself may be withheld until the NCR issue is resolved.

101.05.03 Opportunity for Improvement Should the QAudit review indicate that the Work is not in conformance, but the variance is deemed minor by the Ministry Representative, the Ministry Representative may issue an Opportunity for Improvement (OFI) report.

The Contractor is encouraged to review the findings and undertake such modifications to the QC and/or QA Plan and the work procedures as necessary to address the issue.

An OFI will not affect payment for Quality Management (where included in the Contract) or for the Work itself.

101.06 Appeal If the Contractor disputes the validity of a finding in an NCR, the Contractor may file an appeal with the Ministry Representative. The Ministry Representative and the Contractor Representative will use all reasonable efforts to refine the area of dispute

and to resolve the dispute in conformance with the Contract.

If the Ministry Representative and the Contractor Representative cannot come to a mutually agreeable resolution, the Work that is the subject of the Non-Conformance Report shall be re-evaluated by an independent third-party, selected by the Ministry Representative in consultation with the Contractor, at a test frequency equivalent to twice that specified in the Contract or to such other frequencies as may be mutually agreed between the Ministry Representative and the Contractor.

If the appeal testing confirms the non-conformance determination, all appeal testing costs will be borne by the Contractor. If the appeal testing shows that the Work did in fact meet the requirements of the Contract, all appeal testing costs will be borne by the Ministry.

101.07 Payment [Applicable only where a payment Item is explicitly included in the Contract] The Lump Sum Price bid for Quality Management shall be full compensation for all costs resulting from the Quality Management requirements set out in the Contract.

Payment will be made on a monthly basis prorated for the percentage of the total Work completed as determined by the Ministry Representative, subject to the Contractor being totally compliant with the requirements of this Section and with its own Quality Control Plan.

The Ministry Representative may deduct an amount from any monthly payment so computed, for any quality management work required but not satisfactorily undertaken during that month. The Ministry Representative may also reduce the total Lump Sum payable by the value of any quality management work required but not satisfactorily undertaken during the Term of the Contract. The foregoing determinations will be made in the sole discretion of the Ministry Representative.

Inspection or testing by the Ministry Representative will be at the Ministry's cost. However, re-inspection or re-testing by the Ministry for repaired deficient details shall be at the Contractor's cost.

Work that is deemed unacceptable in accordance with DBSS 101.01 will not be eligible for payment from the applicable Item for that Work.

The Completion Certificate will not be issued if there are any unresolved Non-Conformance Reports.

SECTION 108

SAMPLE FORMS

PART A – GENERAL

108.01 General -This Section provides sample copies of forms which the Contractor may be required to execute and submit to the Ministry in accordance with the Contract. Blank copies of these forms are available from the Ministry Representative or Ministry Manager.

PART B – STATUTORY DECLARATIONS

108.11 Not Used

108.12 Not Used

108.13 Design Build and Design Build Minor – The forms attached as "Appendix C" (Ministry forms H1112 and H1113) are used to meet the Statutory Declaration requirements of the Design Build Agreement or the Design Build Minor General Conditions. The forms relate to Total Completion and Progress Payments/Holdback Release respectively.

APPENDIX C – DESIGN BUILD MINOR

BRITISH COLUMBIA
Ministry of Transportation

STATUTORY DECLARATION
(Design Build Minor and Design Build)
Total Completion

IN THE MATTER OF THE EVIDENCE ACT, 1996 RSBC c.124 AND IN THE MATTER OF CERTAIN DISBURSEMENTS TO BE MADE IN CONNECTION WITH THE CONTRACT

dated the _____ day of _____ , _____ between:

HER MAJESTY THE QUEEN IN RIGHT OF THE PROVINCE OF BRITISH COLUMBIA, AS REPRESENTED BY THE MINISTER OF TRANSPORTATION
(the Province)

and:

_____
_____
_____
(the Contractor)

pertaining to Project Number _____ Contract ID _____

I, _____, being a
(PRINT OR TYPE FULL NAME AND POSITION OR TITLE)

duly authorized representative of and agent for the Contractor on the above-referenced Project do solemnly declare and attest that:

(i) the Contractor has performed all of it's obligations to date under the Contract;

(ii) that the Work has been designed in substantial accordance with the Contract;

(iii) the Work has been constructed in substantial accordance with the Design, the Standards and all codes, by-laws and regulations applicable to the Work; and

(iv) a suitably qualified representative of the Designer has been to the Site to inspect the Work on a sufficient number of occasions, reviewed the Quality Management Plan and is satisfied that, based on the foregoing, the Work has been constructed in accordance with the Design, the Standards and all codes, by-laws and regulations applicable to the Work.

I MAKE THESE SOLEMN DECLARATIONS, conscientiously believing them to be true and knowing that they are of the same legal force and effect as if made under Oath.

DECLARED BEFORE ME AT THE)
)
_____)
)
of _____ , in the) _____
) Signature of Contractor's Authorized Representative
Province of British Columbia, on this)
)
_____ day of _____ , _____)
)
_____)
A Commissioner for taking Affidavits for British Columbia)

SAMPLE

BRITISH COLUMBIA **Ministry of Transportation**

STATUTORY DECLARATION
(Design Build Minor and Design Build)
Progress Estimate & Holdback Release

IN THE MATTER OF THE EVIDENCE ACT, 1996 RSBC c.124 AND IN THE MATTER OF CERTAIN DISBURSEMENTS TO BE MADE IN CONNECTION WITH THE CONTRACT
dated the _____ day of _____ , _____ between:

HER MAJESTY THE QUEEN IN RIGHT OF THE PROVINCE OF BRITISH COLUMBIA, AS REPRESENTED BY THE MINISTER OF TRANSPORTATION
(the Province)

and:

_____
_____
_____
(the Contractor)

pertaining to Project Number _____ Contract ID _____

I, _____, being a
(PRINT OR TYPE FULL NAME AND POSITION OR TITLE)
duly authorized representative of and agent for the Contractor on the above-referenced Project do solemnly declare and attest that:

(i) the Work covered by this invoice has been completed in accordance with the Design and Standards and all other requirements of the Contract and is fit for the purpose intended by the Contract;

(ii) the Contractor has paid in full on all accounts for labour, subcontracts, products, materials, construction machinery, equipment and all other indebtedness or obligation incurred by the Contractor in the performance of the Work as incurred up to the date of the previous invoice; and

(iii) the Contractor has provided written notice to their financial institution and their surety of all payment disputes with respect to any accounts for labour, subcontracts, products, materials, construction machinery, equipment and any other indebtedness or obligation incurred by the Contractor in the performance of the Work.

I MAKE THESE SOLEMN DECLARATIONS, conscientiously believing them to be true and knowing that they are of the same legal force and effect as if made under Oath.

DECLARED BEFORE ME AT THE)
_____)
of _____ , in the) _____
) Signature of Contractor's Authorized Representative
Province of British Columbia, on this)
_____ day of _____ , _____)
_____)
A Commissioner for taking Affidavits for British Columbia)

SAMPLE

SECTION 125

VALUE ENGINEERING - PROPOSAL GUIDELINES

125.01 Definitions

125.01.01 VEP means a value engineering proposal which has been set out in writing by the Contractor to the Ministry in accordance with these guidelines.

125.01.02 Summary VEP means a brief summary of a VEP, including the anticipated cost and timing of developing the VEP, submitted by the Contractor to the Ministry.

125.01.03 Implemented VEP means a value engineering proposal which has been accepted and implemented by means of a Supplemental Agreement or Work Order.

125.01.04 Net Cost Savings means an amount determined by the Ministry on the basis of the Contract Price before implementation of the VEP minus the adjusted Contract Price determined after the implementation of the VEP less the following costs, which are subject to negotiation:

- the Contractor's costs of developing the VEP.
- the Ministry's costs of evaluating the VEP.
- the anticipated additional administration and project management costs to the Ministry resulting from the implementation of the VEP.

125.01.05 Value Engineering Incentive means an amount calculated pursuant to written agreement between the Ministry and the Contractor, which will generally be equal to 50 percent of the Net Cost Savings realized by the Ministry due to the implementation of the VEP.

125.02 Guiding Principles for VEP Evaluation

125.02.01 To be considered, a VEP must be perceived by the Ministry to provide a tangible benefit to the Ministry, such as:

a) a reduction in the total cost of the Project; or

b) an improvement to the product which the Ministry expects will reduce the life cycle costs; or

c) a change in the Construction Schedule which will be beneficial to the Ministry; or

d) a reduction or transfer of risk which will benefit the Ministry;

and should result in a product which is functionally equal or superior to that which would result in the absence of the VEP.

125.02.02 A VEP should not:

a) impair the functionality and characteristics of the Project, including, but not limited to, the service life, economy of operation, ease of maintenance, aesthetic considerations, preliminary engineering commitments, or design and safety standards.

b) be similar to a change in the Drawings or specifications under consideration by the Ministry for the Work at the time the VEP is submitted to the Ministry.

c) increase the anticipated life cycle costs of the Project.

125.02.03 To be eligible for a Value Engineering Incentive, a VEP must propose a change to the Work which meets the same constraints, assumptions and considerations as those which governed the original design of the Work, as it is defined in the Contract.

125.02.04 A VEP may involve:

a) a material or product substitution.

b) a change to the Work method.

c) a Work sequencing change, including changes to traffic routing or detour sequences, changes to structure or roadway construction sequences.

d) a change to the design or engineering of the Project which provides a marked departure from the product as defined in the Contract.

125.03 Value Engineering Proposal Submissions

125.03.01 Prior to presenting a VEP, the Contractor will prepare a Summary VEP and submit it to the Ministry for consideration.

125.03.02 The Ministry will evaluate the Summary VEP and will advise the Contractor whether or not the Ministry would be willing to consider, without obligation, the VEP described in the Summary VEP.

125.03.03 A VEP should contain the following information:

a) a statement that the proposal is submitted as a VEP.

b) a detailed description of the VEP and the manner in which the VEP should be implemented (by Supplemental Agreement or Work Order).

c) a detailed description of the Items and quantities, Drawings, specifications, designs, Completion Date, Milestone Dates or other elements under the Contract which would be changed, altered, modified or replaced by the implementation of the VEP.

d) plans and working drawings needed to analyze the VEP and determine the impact of the VEP on the Project.

e) an itemized cost analysis of the Net Cost Savings.

f) the date, which must be not less than two weeks after the date of the VEP, by which the VEP must be implemented in order to maximize the cost reduction during the remainder of the Agreement.

125.03.04 Any request by the Contractor for substitution of material or method will only be considered if submitted as a VEP.

125.04 Implementation of a VEP

125.04.01 To implement a VEP, the Ministry Representative will prepare a Supplemental Agreement or a Work Order which will set out the Net Cost Savings, the change to Work required to realize the Net Cost Savings, and the adjustment to the Contract Price(s) and payment terms resulting from the VEP, in accordance with these guidelines.

125.04.02 The Ministry will retain the right to utilize a VEP, or part thereof that has been accepted for the Project, on any other or subsequent projects without any obligation to the Contractor, unless the Contractor has provided written notice in the Summary VEP and the VEP regarding patented materials or processes involved in the VEP.

SECTION 135

CONSTRUCTION SITE SAFETY

Note: For any SS Drawing (SP XXX - XX) referenced in this Section refer to the like-numbered Drawings in the "Standard Specifications For Highway Construction" 2006 edition.

135.01 Definitions - In this Section, except as otherwise expressly provided herein:

a) Base Safety Program means the occupational health and safety program that the Contractor will initiate and maintain, as described in this Section.

b) Designated Prime Contractor means the Contractor, or another contractor, designated by the Ministry pursuant to DBSS 135.04.01 to discharge the responsibilities of the Prime Contractor for the Specified Area.

c) Designated Qualified Coordinator means the person designated by the Designated Prime Contractor to discharge the responsibilities of the Qualified Coordinator for the Specified Area.

d) Designated Qualified Person means the person designated by the Designated Prime Contractor to discharge the responsibilities of the Qualified Person for the Specified Area.

e) Designated Supervisor means the person who is designated by an Employer at a Multiple-Employer Workplace to discharge the responsibilities of a supervisor as described in the Workers Compensation Act and the Regulation.

f) Employer means an employer as defined in the Workers Compensation Act, and includes the Contractor.

g) Joint Committee means the joint health and safety committee established and maintained by the Contractor in compliance with the Workers Compensation Act and the Regulation, and

Joint Committees means additional committees that may be established by the Contractor in compliance with the Workers Compensation Act and the Regulation.

h) Multiple Employer Workplace means a workplace where workers of 2 (two) or more employers are working at the same time, and includes the Site and the Specified Area.

i) Notice of Project means the notice of project described in the Regulation.

j) Notice of Unsafe or Harmful Condition or Act means the written notice that the Contractor will deliver to any Employer pursuant to DBSS 135.05, in the form set out in DBSS 135 - Appendix A.

k) Other Persons means any person or persons, other than Workers working on the Project, who, for whatever reason or purpose, are on the Site or the Specified Area.

l) Prime Contractor means a prime contractor as defined in the Workers Compensation Act.

m) Qualified Coordinator means the person, who meets the qualifications of a qualified coordinator described in the Regulation, and who is appointed by the Prime Contractor to discharge for the Site, the responsibilities of a qualified coordinator as described in the Workers Compensation Act and the Regulation.

n) Qualified Person means the person who meets the qualifications of a qualified person described in the Workers Compensation Act and the Regulation, and who is designated by the Prime Contractor to discharge for the Site the responsibilities of a qualified person as described in the Workers Compensation Act and the Regulation.

o) Regulation means the British Columbia Regulation 296/97 entitled *Occupational Health and Safety Regulation* prescribed under the Workers Compensation Act, as amended from time to time.

p) Safety Officer means the person so designated by the Ministry pursuant to this Contract.

q) Specified Area means that part or those parts of the Site and any lands adjoining or overlapping the Site that are designated as the Specified Area in the Contract or in a written notice that may be issued by the Ministry Manager from time to time pursuant to DBSS 135.04.01.

r) Workers means the employees, workers, servants, agents or invitees of Employers, including of the Contractor, at the Site or at the Specified Area.

s) Workers Compensation Act means the Workers Compensation Act, R.S.B.C. 1996, c.492 as amended from time to time.

t) Workers' Compensation Board means the Workers' Compensation Board constituted under the Workers Compensation Act and Regulation.

135.02 Base Safety Program

135.02.01 Notwithstanding the limitation relating to the requirement for initiating and maintaining an occupational health and safety program set out in the Regulation, the Contractor will initiate and at all times maintain at the Site, and if the Contractor has agreed to be the Designated Prime Contractor, at the Specified Area, the Base Safety Program which will be designed to prevent injuries and occupational diseases within the contemplation of the Workers Compensation Act and the Regulation and, without limiting the generality of the foregoing, will describe how the Contractor will ensure that:

a) (not used)

b) the requirements of an occupational health and safety program stipulated in the Regulation will be satisfied, including the establishment and maintenance of a Joint Committee.

c) the activities of all Employers, Workers and Other Persons at the Site and, if applicable, at the Specified Area, relating to occupational health and safety will be coordinated.

d) reasonably practicable measures are taken to establish and maintain a system or process to ensure compliance with the Workers Compensation Act and the Regulation in respect of the Site, and if applicable, the Specified Area.

e) all Workers, Employers, and Other Persons are made aware of all known or reasonably foreseeable health and safety hazards to which they may be exposed on the Site, and if applicable, the Specified Area, and are instructed in the terms of the Workers Compensation Act and the Regulation.

f) complete and accurate reports, records and documents relating to occupational health and safety activities at the Site and, if applicable, at the Specified Area, or related to the Work, will be established, maintained, reviewed and assessed on an ongoing basis.

g) safety equipment and apparel are properly used and worn by Workers and Other Persons, as required pursuant to the Regulation and the Base Safety Program.

h) a first aid program in compliance with the Regulation is established, implemented and maintained at all times on the Site and, if applicable, on the Specified Area.

135.02.02 The Contractor will determine and control the manner in which the Base Safety Program is established, initiated, and maintained and the manner in which the instructions, directions, rules, policies and procedures contained therein are carried out.

135.03 Prime Contractor - The Site

135.03.01 The Contractor, by entering into the Contract, agrees to be the Prime Contractor in connection with the Site for the purposes of the Workers Compensation Act and the Regulation.

135.03.02 The Contractor will, prior to commencement of the Work, deliver to the Ministry Representative, in writing:

a) the name of each of the Qualified Coordinator and the Qualified Person in connection with the Site.

b) a copy of the Notice of Project.

c) confirmation that the Base Safety Program has been initiated and is readily available on the Site.

135.03.03 The Contractor will, in connection with the Work and the Site:

a) observe, abide by and comply with the Workers Compensation Act and the Regulation.

b) deliver the Notice of Project to the Workers' Compensation Board in accordance with the Workers Compensation Act and the Regulation.

c) prominently post and at all times maintain on the Site the Notice of Project in accordance with the Workers Compensation Act and the Regulation.

d) ensure that the person or persons to be appointed as the Qualified Coordinator and Qualified Person meet the qualifications of a "qualified coordinator" and "qualified person" as described in the Workers Compensation Act and the Regulation.

e) appoint and at all times maintain a Qualified Coordinator to perform the functions of the "qualified coordinator" on the Site as described in the Workers Compensation Act and the Regulation, and as set out in this Section, and designate and at all times maintain not less than one Qualified Person to be responsible for health and safety activities of the Contractor in connection with the Work, including, without limiting the generality of the foregoing, administering the Base Safety Program.

f) deliver written notice to the Ministry Representative of any change in the appointed Qualified Coordinator or the Qualified Person referenced in DBSS 135.03.03 (e).

g) establish and at all times maintain one or more Joint Committees.

h) where conditions or activities affect the Workers of more than one Employer, or where there are overlapping or adjoining work activities of 2 (two) or more Employers at the Site, ensure

i) that the Qualified Coordinator coordinates the occupational health and safety activities at the Site,

ii) that:

- Employers, Workers, Suppliers and Subcontractors of the Contractor, and Other Persons,
- the work activities of Workers, Employers, Suppliers and Subcontractors of the Contractor and Other Persons, and
- the conditions of the Site

comply with the Workers Compensation Act and the Regulation;

i) make the Base Safety Program and a copy of the Workers Compensation Act and the Regulation readily available at the Site.

j) provide and maintain the Site in a manner that ensures the health and safety of persons at or near the Site.

k) ensure that every Employer at the Site is given the information known to the Contractor that is necessary to identify and eliminate or control hazards to the health or safety of Workers and Other Persons at the Site.

l) ensure that Workers, Employers and Other Persons are made aware of all known or reasonably forseeable health and safety hazards to which they are likely to be exposed by the Work on the Site.

m) do everything that is reasonably practicable to establish and maintain a system or process that will ensure compliance with the Workers Compensation Act and the Regulation with respect to the Site.

n) immediately notify Employers, Workers, Suppliers and Subcontractors of the Contractor, and Other Persons of any hazard created by virtue of overlapping or adjoining work activities of 2 (two) or more Employers and ensure that the hazards are addressed throughout the duration of such activities.

o) at the sole cost of the Contractor, provide, post and maintain 2 (two) signs, in accordance with the specifications, which contain the informational messaging stipulated in Drawing SS SP135-01 of this Section, at locations satisfactory to the Ministry Representative.

p) immediately give written notice to the Ministry Representative of any event which is reportable or is subject to notification requirements under the Workers Compensation Act or the Regulation.

q) where the execution of the Work involves overlapping or adjoining work activities of 2 (two) or more Employers that create a hazard to Workers, cause the Qualified Coordinator to:

i) coordinate health and safety activities of all Employers at the Site in accordance with the Regulation.

ii) publish and post at the Site and otherwise make readily available on the Site, information relating to health and safety activities at the Site, including without limiting the generality of the foregoing:

- the name of the Qualified Coordinator,
- a drawing of the Site showing the project layout, first aid locations, emergency transportation provisions and the evacuation marshalling station, and
- a set of construction procedures designed to protect the health and safety of Workers at the Site

all in compliance with the requirements of the Workers Compensation Act and the Regulation.

135.04 Designated Prime Contractor - The Specified Area

135.04.01 The Ministry may, in its sole discretion, designate in writing the Specified Area, and

a) appoint in writing the Contractor to be the Designated Prime Contractor in connection with the Specified Area, and upon notification of such appointment the Contractor will deliver written confirmation to the Ministry of its agreement to be the Designated Prime Contractor, or

b) appoint in writing a contractor other than the Contractor as the Designated Prime Contractor in connection with the Specified Area, and will notify the Contractor in writing of the designation.

135.04.02 The Designated Prime Contractor, in connection with the Specified Area, will:

a) deliver written confirmation to the Workers' Compensation Board, with a copy to the Ministry Representative, of its agreement to be the Designated Prime Contractor for the Specified Area.

b) appoint a Designated Qualified Coordinator to perform the functions of the "qualified coordinator" as described in the Workers Compensation Act and the Regulation, and as set out in this Section for the Specified Area.

c) where conditions or activities affect the Workers of more than one Employer, or where there are overlapping or adjoining work activities at the Specified Area, ensure that

i) the Employers, Workers, Suppliers and Subcontractors of the Designated Prime Contractor, and Other Persons,

ii) the work activities of all Employers, Workers, Suppliers and Subcontractors of the Designated Prime Contractor and Other Persons, and

iii) the conditions of the Specified Area,

comply with the Workers Compensation Act and the Regulation;

d) provide and maintain the Specified Area in a manner that ensures the health and safety of persons at or near the Specified Area.

e) ensure that every Employer at the Specified Area is given the information known to the Designated Prime Contractor that is necessary to identify and eliminate or control hazards to the health or safety of Workers and Other Persons at the Specified Area.

f) make a copy of the Workers Compensation Act and the Regulation readily available at the Specified Area.

g) cause the Designated Qualified Coordinator to:

i) coordinate health and safety activities of all Employers on the Specified Area in accordance with the Workers Compensation Act and the Regulation.

ii) publish and post on the Specified Area and otherwise make information relating to overlapping or adjacent health and safety activities on the Specified Area readily available, including without limiting the generality of the foregoing:

- the name of the Designated Qualified Coordinator,
- a drawing of the Specified Area showing the project layout, first aid locations, emergency transportation provisions and the evacuation marshalling station, and
- a set of construction procedures designed to protect the health and safety of Workers in the case of overlapping or adjacent work activities on the Specified Area,

all in compliance with the requirements of the Workers Compensation Act and the Regulation.

135.05 Site and Specified Area Notice Process

135.05.01 If the Prime Contractor, in connection with the Site, or the Designated Prime Contractor, in connection with the Specified Area determines, in its reasonable discretion, that:

a) any Employer or its Workers has failed to comply with the Workers Compensation Act or the Regulation, or to act in accordance with the requirements of the Base Safety Program for coordinating health and safety activities,

b) the failure creates or may create an unsafe or harmful condition on the Site or Specified Area that poses a danger of injury or death to Workers,

the Prime Contractor, or the Designated Prime Contractor, as applicable, may issue a Notice of Unsafe or Harmful Condition or Act to the applicable Employer, stipulating in reasonable detail the basis for the issuance of the Notice of Unsafe or Harmful Condition or Act, and the Contractor, or the Designated Prime Contractor, as applicable, will deliver a copy of the Notice of Unsafe or Harmful Condition or Act to the Ministry Representative.

135.05.02 The terms "Employer" and "Workers" referenced in DBSS 135.05, do not include the Prime Contractor's or the Designated Prime Contractor's Subcontractors or Suppliers, or their respective employees, workers, servants, agents or invitees.

135.05.03 Upon receipt of the Notice of Unsafe or Harmful Condition or Act, the Ministry Manager will issue to the applicable Employer a Stop Work Order at the location on the Site, or on the Specified Area, as applicable, that is specified in the Notice of Unsafe or Harmful Condition or Act.

135.05.04 The Ministry will be deemed to have relied on the terms of and reasons for the issuance of the Notice of Unsafe or Harmful Condition or Act, notwithstanding any subsequent investigation or inquiry of the matter by the Ministry, which the Ministry may but will not be obligated to undertake.

135.05.05 If the Prime Contractor, or the Designated Prime Contractor, as applicable, and the Employer referenced in DBSS 135.05.01 fail to agree on the reasons for the issuance of the Notice of Unsafe or Harmful Condition or Act, then within one day of the issuance of the Notice of Unsafe or Harmful Condition or Act, the directive of the Prime Contractor, or the Designated Prime Contractor, to rectify the failure to comply with the Regulation or to act in accordance with the Base Safety Program, as the case may be, will be immediately implemented.

135.05.06 When the failure to comply with the Workers Compensation Act or the Regulation in accordance with the Base Safety Program stipulated in the Notice of Unsafe or Harmful Condition or Act has been rectified by the Employer to whom it was given to the reasonable satisfaction of the Prime Contractor, or the Designated Prime Contractor, as applicable, the Prime Contractor, or the Designated Prime Contractor, as applicable, will immediately:

a) withdraw the Notice of Unsafe or Harmful Condition or Act by endorsing on a copy thereof confirmation that the failure to comply with the Workers Compensation Act or the Regulation in accordance with the Base Safety Program has been rectified.

b) deliver the endorsed copy of the Notice of Unsafe or Harmful Condition or Act confirming the cancellation thereof to the applicable Employer and to the Ministry Representative.

135.05.07 The Ministry Manager will issue an Resume Work Order on receipt of the endorsed copy cancelling the Notice of Unsafe or Harmful Condition or Act.

135.05.08 If the Prime Contractor or the Designated Prime Contractor, as applicable, is delayed in performing the Work as a result of being required to issue the Notice of Unsafe or Harmful Condition or Act and the Work is stopped pursuant to an Stop Work Order under this Article, then the Completion Date will be extended by the number of days equal to the delay, as determined in the sole discretion of the Ministry Manager, and the Prime Contractor or the Designated Prime Contractor, as applicable, will not be entitled to any compensation, in damages or otherwise, including without limiting the generality of the foregoing, any claim for lost profits or other consequential loss, including business loss, as a result of or in connection with the issuance and operation of any Notice of Unsafe or Harmful Condition or Act or the issuance and operation of any Stop Work Order pursuant to this Section.

135.06 Contractor Obligations to Coordinate with the Designated Prime Contractor - The Specified Area

135.06.01 Notwithstanding the Contractor's agreement to be the Designated Prime Contractor for the Specified Area pursuant to DBSS 135.04.01, the Contractor will continue to undertake and perform the obligations of a Prime Contractor at the Site at all times in accordance with the Workers Compensation Act, the Regulation and this Section.

135.06.02 If another contractor is appointed as the Designated Prime Contractor in connection with the Specified Area pursuant to DBSS 135.04.01, the Contractor will:

a) continue to undertake and perform the obligations of a Prime Contractor at the Site at all times in accordance with the terms of the Workers Compensation Act, the Regulation and this Section.

b) schedule and perform the Work and, in good faith, co-operate with the Designated Prime Contractor so as to comply with any directives that may be issued by the Designated Prime Contractor to coordinate the health and safety activities on the Specified Area.

c) ensure that at all times all Employers, Workers, Subcontractors and Suppliers of the Contractor, and Other Persons comply with the Designated Prime Contractor’s directions on coordinating occupational health and safety activities on the Specified Area.

d) upon the request of the Designated Prime Contractor, deliver occupational health and safety records and documentation to the Designated Prime Contractor as necessary for the Designated Prime Contractor to meet its obligations under the Regulation and under this Section.

e) advise the Designated Prime Contractor in writing and in advance of any work activities to be undertaken in the Specified Area that are likely to create a hazard for Workers of another Employer, and of the work activities.

f) on receipt of notification from the Designated Prime Contractor of any unsafe or harmful condition or act by its Workers, Subcontractors, or Suppliers, or the Workers of its Subcontractors or Suppliers, investigate the reported situation and take immediate action to correct the condition or act, and report back to the Designated Prime Contractor, as may be required by the Designated Prime Contractor.

g) upon receipt of a Notice of Unsafe or Harmful Condition or Act from the Designated Prime Contractor and of an Stop Work Order from the Ministry

Representative, take all steps to rectify, or cause to be rectified, the failure to comply with the Workers Compensation Act and the Regulation or to act in accordance with the Base Safety Program to the satisfaction of the Designated Prime Contractor.

h) if the Contractor and the Designated Prime Contractor fail to agree on the reasons for the issuance of the Notice of Unsafe or Harmful Condition or Act within 1 (one) day of the issuance of the Notice of Unsafe or Harmful Condition or Act, immediately implement the directive of the Designated Prime Contractor to rectify the failure to comply with the Regulation or to act in accordance with the Base Safety Program, as the case may be.

i) advise the Designated Prime Contractor in writing of the name of the Qualified Person, and of any change in the Qualified Person, designated to be responsible for the Contractor's health and safety activities on or in connection with the Site, including the Specified Area.

135.06.03 The Ministry will be deemed to have relied on the terms of and reasons for the issuance of the Notice of Unsafe or Harmful Condition or Act notwithstanding any subsequent investigation or inquiry of the matter by the Ministry, which the Ministry may but will not be obligated to undertake.

135.06.04 Notwithstanding any other term of this Section or of the Contract, the Ministry may withhold payment of any progress payment due to the Contractor under the Contract. If the Designated Prime Contractor has issued, in connection with the Site or the Specified Area, as applicable, a Notice of Unsafe or Harmful Condition or Act in accordance with this Section, and the Ministry may continue to withhold payment of such progress payment or payments, as the case may be, until such time as the Notice of Unsafe or Harmful Condition or Act has been cancelled and the Resume Work Order has been issued.

135.07 Contractor's Health and Safety Records

135.07.01 The Contractor will:

a) establish and maintain at a location on the Site, or at a location off the Site that is satisfactory to the Ministry, accurate records, including supporting documents, relating to the implementation, operation, and maintenance of the Base Safety Program, and to any other occupational health and safety matters relating to the Work.

b) notify the Ministry of the location referred to in DBSS 135.07.01 (a) not later than 5 (five) days after the Commencement Date.

c) permit the Ministry, its servants, employees and agents, at any time or times during normal business hours, to copy or audit, or both, any or all of the records, including supporting documents, referred to DBSS 135.07.01 (a).

135.07.02 The records and documentation referred to in DBSS 135.07.01 (a) include, but are not limited to the following in relation to the Work, the Site and the Specified Area:

a) the Base Safety Program.

b) any and all notices, directives and inspection reports which have been delivered to the Workers' Compensation Board by the Contractor or which the Contractor has received from the Workers' Compensation Board.

c) any and all written summaries of the particulars of any and all remedial actions taken by the Contractor to prevent the development or continuance of any risks, unsafe or harmful conditions or acts or hazards and to prevent the recurrence of such events.

d) minutes of and other documentation prepared in connection with or relating to safety meetings held between the Contractor and its Workers demonstrating that all Workers have and are receiving ongoing and adequate direction and instruction in the performance of their duties and the Work is being performed safely and without undue risk, and demonstrating the performance of regular inspections in accordance with and for the purposes stipulated in the Workers Compensation Act and the Regulation.

135.07.03 The entitlement to any payments by the Ministry to the Contractor under the Contract is conditional on the prior submission to the Ministry Representative by the Contractor, on a monthly basis, of a written summary of the documents recorded and collected under DBSS 135.07.02 and, if the Contractor is designated to act as the Designated Prime Contractor, a written summary of the actions taken by the Contractor to coordinate the occupational health and safety activities of the Employers, the Workers, and the Other Persons within the Specified Area.

135.07.04 The Contractor will cause the Qualified Coordinator to obtain and will ensure that the Qualified Coordinator:

a) obtains the records prepared with respect to the Joint Committee meetings held in connection with the Site.

b) distributes such records to the qualified persons, appointed in accordance with the Workers Compensation Act and the Regulation, of other Employers on the Site,

and as may be otherwise required by the Workers Compensation Act and the Regulation.

135.07.05 At all times during the Term, the Contractor will deliver to the Ministry Representative a copy of any accident or incident reports prepared by the Contractor in compliance with the Workers Compensation Act and the Regulation, when such reports have been completed.

135.07.06 The Contractor will provide the Ministry Representative with a statistical summary of all health and safety records applicable to the Site during the Term which summary entitled "Contractor's Accident Statistics Summary Report" attached as in Appendix B to this Section, will provide particulars of the following information:

a) the total number of hours worked by the Workers of the Contractor and the Workers of Subcontractors of the Contractor.

b) the total number of occurrences or events which occurred on the Site that were reportable to or subject to the notification requirements of the Workers Compensation Act or the Regulation.

c) the total number person-days lost due to accidents, injuries or incidents.

d) the total actual cost of damage to equipment and materials due to accidents, injuries, or incidents.

135.07.07 Receipt and retention by the Ministry of the information and documentation listed above in this Section in no way constitutes approval of or authorization of the form, content or adequacy of such information and documentation on the part of the Ministry.